

Amendment No. 1 to HB0491

Farmer
Signature of Sponsor

AMEND Senate Bill No. 48*

House Bill No. 491

by deleting all language after the enacting clause and substituting instead the following:

SECTION 1. Tennessee Code Annotated, Section 20-13-203, is amended by deleting the section and substituting instead the following:

Upon written approval of the governor and comptroller of the treasury, the attorney general and reporter has the authority to release any pending or future claim of governmental entities against McKesson Corporation, Cardinal Health, Inc., AmerisourceBergen Corporation, Johnson & Johnson, Allergan Finance, LLC, CVS Health Corporation, Teva Pharmaceutical Industries Ltd., Walgreen Co., Walmart Inc., K-VA-T Food Stores, Inc., The Kroger Co., Amneal Pharmaceuticals LLC, Hikma Pharmaceuticals USA Inc., Indivior Inc., Sun Pharmaceutical Industries, Inc., Viatris Inc., and Purdue Pharma L.P. and affiliates, subsidiaries, and other entities related to these companies that are released in the McKesson Corporation, Cardinal Health, Inc., AmerisourceBergen Corporation, Johnson & Johnson, Allergan Finance, LLC, CVS Health Corporation, Teva Pharmaceutical Industries Ltd., Walgreen Co., Walmart Inc., K-VA-T Food Stores, Inc., The Kroger Co., Amneal Pharmaceuticals LLC, Hikma Pharmaceuticals USA Inc., Indivior Inc., Sun Pharmaceutical Industries, Inc., Viatris Inc., and Purdue Pharma L.P. settlement agreements or bankruptcy plans and related

agreements for activities related to the manufacture, marketing, distribution, dispensing, or sale of opioids, or related activities, if the attorney general and reporter deems the release necessary to the interest of the state in the resolution of the opioid crisis.

SECTION 2. Tennessee Code Annotated, Section 33-11-103(p), is amended by deleting subsection (p) and substituting instead the following:

(p) For proceeds received from a statewide opioid settlement agreement or bankruptcy plan and related agreements with McKesson Corporation, Cardinal Health, Inc., AmerisourceBergen Corporation, Johnson & Johnson, Allergan Finance, LLC, CVS Health Corporation, Teva Pharmaceutical Industries Ltd., Walgreen Co., Walmart Inc., K-VA-T Food Stores, Inc., The Kroger Co., Amneal Pharmaceuticals LLC, Hikma Pharmaceuticals USA Inc., Indivior Inc., Sun Pharmaceutical Industries, Inc., Viatris Inc., or Purdue Pharma L.P. or affiliates, subsidiaries, or other related entities that are deposited in the opioid abatement fund, the council shall disburse thirty-five percent (35%) of these proceeds to counties that join the settlement. The council shall disburse these proceeds to counties subject of subsections (q)–(s). The council shall disburse the remaining sixty-five percent (65%) of such proceeds for statewide, regional, or local opioid abatement and remediation purposes pursuant to § 33-11-105.

SECTION 3. If any provision of this act or its application to any person or circumstance is held invalid, the invalidity does not affect other provisions or applications of the act that can be given effect without the invalid provision or application, and to that end, the provisions of this act are severable.

SECTION 4. This act takes effect upon becoming a law, the public welfare requiring it.